

EASEMENT FOR STORM SEWER AND CHANNEL PURPOSES

KNOW ALL MEN BY THESE PRESENTS,

That Knox Cattle Company, an Ohio General Partnership

_____ the Grantor _____,

for and in consideration of the sum of _____ Dollars (\$_____) and for other good and valuable considerations to _____ paid by CITY OF MOUNT VERNON the Grantee, the receipt whereof is hereby acknowledged, do _____ hereby grant, bargain, sell, convey and release to the said Grantee, its successors and assigns forever, an easement for the construction of a perpetual watercourse, ditch, channel or other drainage facility in, upon and over the lands hereinafter described and as shown by plans on file in the Knox County Engineer's Office. The Grantor herein retains the right to use said land for any and all other purposes provided that such use does not interfere with nor impair the exercise of the easement herein granted.

PARCEL NO. 23-S

Located in the City of Mount Vernon, Monroe TWP., Knox County, State of Ohio and being a part southeast quarter of Section 25 in the Third Quarter of Twp. 7 N, Range 12 W, in the U.S. Military Lands and being more particularly described as follows:

Beginning at an railroad spike found at the northwest corner of the said southeast quarter and being on the centerline of Existing Right of Way and the centerline of Construction and centerline of proposed Right of Way and centerline of proposed Right of Way of Yauger Rd. (C.R. 68), as surveyed by Richland Engineering Limited for the Knox County Engineer and the centerline survey plat is recorded in Vol. PC-B, Page 173, of the Knox County records. said point being at Yauger Rd. (C.R. 68) centerline of Construction and centerline of proposed Right of Way Station 20+00.00;

Thence S 85° 24' 31"E along the northerly line of the said southeast quarter a distance of 26.97 feet to a point, said point being 10.16 feet northerly of and at right angles to Yauger Rd. (C.R. 68) centerline of Construction and centerline of proposed Right of Way Station 20+24.98;

Thence S 52° 32' 37"E along the existing centerline of Right of Way of Yauger Rd. (C.R. 68) a distance of 149.51 feet to a point, said point being 1.99 feet southerly of and at right angles to Yauger Rd. (C.R. 68) centerline of Construction and centerline of proposed Right of Way Station 21+73.84;

Thence S 48° 55' 43"E along the existing centerline of Right of Way of Yauger Rd. (C.R. 68) a distance of 215.21 feet to a point, said point being 3.69 feet southerly of and at right angles to Yauger Rd. (C.R. 68) centerline of Construction and centerline of proposed Right of Way Station 23+89.04;

Thence S 50° 50' 42"E along the existing centerline of Right of Way of Yauger Rd. (C.R. 68) a distance of 462.74 feet to a point, said point being 4.02 feet southerly of and radially to Yauger Rd. (C.R. 68) centerline of Construction and centerline of proposed Right of Way Station 28+51.64;

Thence S 60° 05' 43"E along the existing centerline of Right of Way of Yauger Rd. (C.R. 68) a distance of 366.89 feet to a point, said point being 2.32 feet northerly of and at right angles to Yauger Rd. (C.R. 68) centerline of Construction and centerline of proposed Right of Way Station 32+18.67;

Thence S 64° 47' 48"E along the existing centerline of Right of Way of Yauger Rd. (C.R. 68) a distance of 360.19 feet to the true place of beginning, said point being 4.49 feet northerly of and radially to Yauger Rd. (C.R. 68) centerline of Construction and centerline of proposed Right of Way Station 35+79.12;

Thence S 66° 11' 45"E along the existing centerline of Right of Way of Yauger Rd. (C.R. 68) a distance of 131.57 feet to a point, said point being 3.21 feet southerly of and radially to Yauger Rd. (C.R. 68) centerline of Construction and centerline of proposed Right of Way Station 37+10.57;

Thence S 03° 20' 29"W a distance of 27.65 feet to the true place of beginning, said point being 30.00 feet southerly of and radially to Yauger Rd. (C.R. 68) centerline of Construction and centerline of proposed Right of Way Station 37+17.34;

Thence southeasterly and on a curve to the left, said curve having a radius of 1462.39 feet, an arc length of 91.02 feet, a chord length of 91.00 feet and a chord bearing of S 74° 14' 01" E to a point, said point being 30.00 feet southerly of and at right angles to Yauger Rd. (C.R. 68) centerline of Construction and centerline of proposed Right of Way Station 38+06.49;

COMPARED

Thence S 76° 01' 00"E a distance of 543.51 feet to a point, said point being 30.00 feet southerly of and at right angles to Yauger Rd. (C.R. 68) centerline of of Existing right of Way Station 43+50.00;

Thence S 13° 59' 00" W a distance of 30.00 feet to a point, said point being 60.00 feet southerly of and at right angles to Yauger Rd. (C.R. 68) centerline of of Existing Right of Way Station 43+50.00;

Thence N 76° 01' 00" W a distance of 350.00 feet to a point, said point being 60.00 feet southerly of and at right angles to Yauger Rd. (C.R. 68) centerline of Construction and centerline of proposed Right of Way Station 40+00.00;

Thence N 78° 52' 13" W a distance of 200.57 feet to a point, said point being 70.00 feet southerly of and radially to Yauger Rd. (C.R. 68) centerline of Construction and centerline of proposed Right of Way Station 38+00.00;

Thence N 67° 01' 06" W a distance of 79.42 feet to a point on the Grantor's westerly property line, said point being 60.00 feet southerly of and radially to Yauger Rd. (C.R. 68) centerline of Construction and centerline of Proposed Right of Way Station 37+24.62;

Thence N 03° 20' 29" E along the said westerly property line a distance of 30.93 feet to the place of beginning, and containing 0.466 acres more or less.

The description for this parcel is based upon a survey made in 1994 under the direction and supervision of David A. Armstrong, Registered Surveyor No. 5788.

COMPARED

TRANSFER NOT NECESSARY

Margaret Ann Dill

KNOX COUNTY AUDITOR

It is understood the area of land above described contains _____ acres, more or less.

KNOX
CATTLE
COMPANY
has

IN WITNESS WHEREOF, said JERRY L. BAKER, GENERAL PARTNER FOR

caused its corporate name to be subscribed and its corporate seal to be affixed by its _____ president and
_____ secretary this 31st day of MAY in the year of our Lord one thousand nine hundred
and NINETY-FIVE.

In presence of:

JAMES L. HENRY
Patricia Carpenter

KNOX CATTLE COMPANY
By [Signature] General Partner

(SEAL)

COMPARED

STATE OF OHIO

Knox COUNTY ss:

Before me, a NOTARY PUBLIC

, in and for said county, personally appeared
JERRY L. BAKER, GENERAL PARTNER FOR KNOX CATTLE COMPANY

_____, secretary, of _____

_____, the corporation which executed the foregoing instrument,

who acknowledged that the seal affixed to said instrument is the corporate seal of said corporation; that they did sign and

seal said instrument as such _____ president and _____ secretary in behalf of said corporation and by

authority of its board of directors; and that said instrument is their free act and deed individually and as such

_____ president and _____ secretary and the free and corporate act and deed of said _____

IN TESTIMONY WHEREOF, I have hereunto subscribed my name and affixed my official seal at

Mt. Vernon, Ohio, this 31 day of MAY, 1995

A Christine Williams
Notary Public

(Seal)

A. CHRISTINE WILLIAMS
Notary Public, State of Ohio
My Commission Expires June 18, 1998

THIS INSTRUMENT PREPARED BY THE
KNOX COUNTY ENGINEER'S OFFICE.

KNOX COUNTY OHIO
Filed at 1:27 o'clock P. m.

NOV 21 1996

RECORDED Nov. 21, 1996
VOL. 458 PAGE 604-606
JOHN B. LYBARGER, RECORDER

Jo Joe